

Table of Contents

- Law Information
- Summary
- Preamble
- Part 1: Preliminary
- Part 2: Prohibition on Employment of Children
- Part 3: Provisions Relating to Employment of Children
- Part 4: Provisions Relating to Inspection
- Part 5: Provisions Relating to Penalties and Appeal
- Part 6: Miscellaneous
- Schedule (Related to Section 3(2))
- Key Metadata

Law Information

Original Nepali Title	बाल श्रम (निषेध र नियमन गर्ने) ऐन, २०५६
English Title	Child Labour (Prohibition and Regulation) Act, 2056 (2000 AD)
Year Enacted	2056 BS (2000 AD)
Act Number	Act No. 1 of 2056
Certification Date	2057.3.7 (Bikram Sambat)
Category	Labour Rights, Child Protection
Document Type	Act of Parliament
Amending Laws	1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2. Some Nepal Act Amendment Act, 2072 (2015) 3. Amendment, Consolidation, Adjustment and Repeal Act, 2074 (2017) 4. Some Nepal Act Amendment Act, 2075 (2018)
Commencement	This Act came into force on 2061.8.1 (as notified in Nepal Gazette 2061.7.30)

Summary

The Child Labour (Prohibition and Regulation) Act, 2056 (2000 AD) is a comprehensive legislation enacted to prohibit the engagement of children as labourers in hazardous occupations and processes, and to regulate the conditions of employment of children in other occupations where their employment is permitted. The Act establishes the legal framework for protecting children from economic exploitation and from performing work that interferes with their education or is harmful to their health or physical, mental, spiritual, moral, or social development.

The Act applies to all establishments in Nepal where children are employed. It prohibits the employment of children below 14 years of age as labourers and prohibits the engagement of any child in hazardous occupations and processes listed in the Schedule. For children above 14 years in non-hazardous work, the Act mandates prior approval, medical fitness certification, working hour limitations (maximum 6 hours daily

and 36 hours weekly), rest periods, weekly holidays, equal remuneration without discrimination, and health and safety standards.

The Act establishes an inspection mechanism through Labour Offices, provides for penalties including imprisonment and fines for violations, creates a Child Labour Prevention Fund, and constitutes a Child Labour Prevention Committee to advise the government on policy matters. It also amends related provisions of the Labour Act, 2048 and the Children Act, 2048.

Preamble

WHEREAS it is expedient to make necessary provisions to prohibit the engagement of children as labourers in factories, workshops, or similar other risky works and to make provisions relating to their health, safety and service and facilities while engaging children in other works;

His Majesty King Birendra Bir Bikram Shah Dev has enacted this law on the advice and with the consent of the National Parliament during the twenty-ninth year of His reign.

Part 1: Preliminary

Section 1: Short Name and Commencement

- (1) This Act shall be called the "Child Labour (Prohibition and Regulation) Act, 2056 (2000 AD)".
- (2) This Act shall come into force on such date as the Government of Nepal may, by notification in the Nepal Gazette, appoint.

Section 2: Definitions

Unless the subject or context otherwise requires, in this Act:

- (a) "Child" means a minor who has not completed the age of eighteen years.
- (b) "Establishment" means an establishment as referred to in Section 2, Clause (g) of the Labour Act, 2074.
- (c) "Manager" means a manager as referred to in Section 2, Clause (d) of the Labour Act, 2074.
- (d) "Day" means a period of twenty-four hours beginning at midnight.
- (e) "Week" means a period of seven days beginning at midnight of Saturday or such other day as the Labour Office may appoint.
- (f) "Physician" means a physician appointed by the Labour Office.
- (g) "Certificate of Fitness" means a certificate issued under Sub-section (4) of Section 7.

(h) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules framed under this Act.

Part 2: Prohibition on Employment of Children

Section 3: Prohibition on Employment of Children

- (1) No person shall employ a child who has not completed fourteen years of age as a labourer.
- (2) No person shall engage a child in any hazardous occupation or work as set forth in the Schedule.

Section 4: Prohibition on Employment Against Will

No person shall, by allurement, enticement, misrepresentation, or by any inducement, threat, coercion, or pressure, or in any other manner, engage a child against his/her will as a labourer.

Part 3: Provisions Relating to Employment of Children

Section 5: Information to be Furnished

(1) The manager operating any hazardous occupation or work as set forth in the Schedule at the time of commencement of this Act shall furnish written information to the Labour Office within thirty days from the date of commencement of this Act, setting forth the following particulars:

- (a) Name and address of the establishment;
- (b) Name and address of the manager;
- (c) Nature of business or work operated by the establishment; and
- (d) Such other particulars as prescribed.

(2) After the commencement of this Act, a manager who commences to operate any hazardous occupation or work as set forth in the Schedule shall furnish information to the Labour Office within fifteen days from the date of commencement of such business or work as referred to in Sub-section (1).

Section 6: Approval to be Obtained

(1) If any establishment needs to employ a child, prior approval of the concerned Labour Office or such other body or authority as designated by such Office, and of the child's father, mother, or guardian, shall be obtained.

Provided that this section shall not apply to the employment of a child in an educational institution recognized by the Government of Nepal or in work organized by an institution established under prevailing law for the welfare and interest of children, or in cultural programmes.

(2) While granting approval for the employment of a child under Sub-section (1), the Labour Office may require the concerned establishment to appoint a suitable instructor for the education, skill development, and training of the child, and the establishment shall comply with such requirement.

Section 7: Certificate of Fitness to be Obtained

(1) Before employing a child as a labourer, the establishment shall obtain a certificate of fitness certifying that the child is fit to work as a labourer.

(2) To obtain the certificate of fitness under Sub-section (1), the establishment shall submit an application to the Labour Office setting forth the nature of work and the age of the child.

(3) Upon receipt of the application under Sub-section (2), the Labour Office shall cause the medical examination of such child to be conducted by a physician.

(4) If the child is found fit for work upon medical examination by the physician under Sub-section (3), the physician shall issue a certificate of fitness in the prescribed format.

(5) The certificate of fitness issued under Sub-section (4) shall be valid for one year.

(6) The concerned establishment shall cause the renewal of the certificate of fitness issued under Sub-section (5) by a physician.

(7) The concerned establishment shall bear the fees for obtaining and renewing the certificate of fitness.

(8) An establishment employing a child who has completed fourteen years of age at the time of commencement of this Act may obtain the certificate of fitness within thirty days from the date of commencement of this Act.

Section 8: Particulars to be Furnished

(1) After the commencement of this Act, an establishment employing a child shall submit the following particulars accompanied by a photograph of the child to the Labour Office within fifteen days from the date of employment:

- (a) Name and address of the establishment;
- (b) Name and address of the manager;
- (c) Date of commencement of the establishment;
- (d) Business or work operated by the establishment;
- (e) Name, address, and age of the child;

- (f) Name and address of the child's father, mother, or guardian;
- (g) Date of employment of the child;
- (h) Nature of work to be performed by the child;
- (i) Amount of remuneration and other facilities to be received by the child;
- (j) Certificate of fitness of the child; and
- (k) Such other particulars as prescribed.

(2) An establishment employing a child who has completed fourteen years of age at the time of commencement of this Act shall submit the particulars referred to in Sub-section (1) to the Labour Office within thirty days from the date of commencement of this Act.

Section 9: Working Hours

- (1) No child shall be made to work between 6:00 p.m. and 6:00 a.m.
- (2) No child shall be made to work for more than six hours a day and thirty-six hours a week, except with additional remuneration.
- (3) A child shall be given a half-hour rest period after every three hours of continuous work and one day of weekly holiday.
- (4) The half-hour rest period each day and the weekly holiday of one day under Sub-section (3) shall be deemed to be periods of work.
- (5) A child who has worked in one establishment on any day shall not be made to work in any other establishment on the same day.

Section 10: Remuneration and Facilities

- (1) An establishment shall pay equal remuneration and provide equal facilities to a child working as a labourer without discrimination on the basis of sex, caste, religion, or race for similar work.
- (2) The remuneration, allowance, holiday, and other facilities to be received by a child working in an establishment shall be as prescribed.
- (3) No manager shall employ a child in an establishment for remuneration and facilities less than those prescribed under Sub-section (2).

Section 11: Provisions Relating to Health and Safety of Children

The arrangements to be made by the manager for the health and safety of children working in an establishment shall be as prescribed.

Section 12: Dispute Relating to Age

- (1) If a dispute arises regarding the age of any child working in an establishment, the age recorded in the birth certificate shall be deemed to be the actual age of the child.
- (2) If no birth certificate of the child is available, the age determined through medical examination by a physician shall be deemed to be the actual age.

Section 13: Register to be Maintained

- (1) The manager shall maintain a register containing the following particulars of every child employed in the establishment:
 - (a) Name and address of the child;
 - (b) Name and address of the father, mother, or guardian;
 - (c) Date of birth or age;
 - (d) Date of employment;
 - (e) Nature of work;
 - (f) Hours of work;
 - (g) Rest period;
 - (h) Remuneration and other facilities; and
 - (i) Such other particulars as prescribed.
- (2) The register maintained under Sub-section (1) shall be made available for inspection by the employee deputed by the Labour Office upon request.

Section 14: Notice to be Posted

The manager shall post on the notice board of the establishment the works in which children are prohibited from being engaged, the remuneration and facilities to be received by children, the weekly holiday, and the penalties for engaging children in works contrary to this Act.

Part 4: Provisions Relating to Inspection

Section 15: Inspection and Action

- (1) The Labour Office may, from time to time, depute any employee to inspect establishments employing children.

(2) The manager shall allow the employee deputed under Sub-section (1) to enter the establishment at any time for inspection and shall provide any information or explanation requested by such employee.

Section 16: Removal from Work

(1) If, upon inspection of an establishment under Section 15, any child is found employed in contravention of Section 3 or 4, the inspecting employee shall, as soon as possible, hand over such child to his/her father, mother, or guardian and order the manager to remove the child from work.

(2) If the father, mother, or guardian of the child referred to in Sub-section (1) is not available or cannot be traced, the manager shall place such child in a child welfare home or an institution that cares for children.

(3) The expenses incurred in handing over the child to his/her father, mother, or guardian, or in placing the child in a child welfare home or institution under Sub-sections (1) and (2), shall be borne by the establishment.

Section 17: Inspection Report

(1) The employee deputed for inspection under Section 15 shall submit an inspection report to the Labour Office within fifteen days from the date of completion of inspection, setting forth true particulars as to whether any child has been employed in the establishment in contravention of this Act, and whether all necessary arrangements relating to the health and safety of children employed, and all other provisions required under this Act and the rules framed thereunder, have been complied with. If the deputed employee fails to perform the work assigned under this section, or if the report submitted is found to be untrue, the Labour Office may conduct an inquiry as prescribed, and if found guilty, action shall be taken against such employee as per law.

(2) If, on the basis of the report submitted under Sub-section (1), it is found that any establishment has failed to comply with any provision required under this Act and the rules framed thereunder, the Labour Office shall issue an order to the manager to make necessary arrangements within a reasonable time.

(3) The manager shall comply with the order issued by the Labour Office within the time specified under Sub-section (2).

Section 18: Suspension of Facilities

(1) If the concerned establishment fails to make necessary arrangements as ordered by the Labour Office under Section 17, the Labour Office may cause the suspension of all or any facilities being provided to such establishment under prevailing law for the prescribed period, and shall notify the concerned body accordingly.

(2) Upon receipt of communication from the Labour Office under Sub-section (1), the concerned body shall suspend the facilities of the concerned establishment and inform the Labour Office accordingly.

Part 5: Provisions Relating to Penalties and Appeal

Section 19: Penalties

- (1) Any person who acts in contravention of Sub-section (1) of Section 3 shall be punished with imprisonment for a term not exceeding three months or a fine not exceeding ten thousand rupees, or both.
- (2) Any person who acts in contravention of Sub-section (2) of Section 3 and Section 4 shall be punished with imprisonment for a term not exceeding one year or a fine not exceeding fifty thousand rupees, or both.
- (3) Any manager who acts in contravention of Section 6, 7, 9, 10, or 11 shall be punished with imprisonment for a term not exceeding two months or a fine not exceeding five thousand rupees, or both.
- (4) Any manager who acts in contravention of Section 5, 13, or 14 shall be punished with imprisonment for a term not exceeding one month or a fine not exceeding three thousand rupees, or both.
- (5) Any person who acts in contravention of this Act or the rules framed thereunder, other than as referred to in Sub-sections (1), (2), (3), and (4), shall be punished with imprisonment for a term not exceeding fifteen days or a fine not exceeding one thousand rupees, or both.
- (6) If any person, after being punished once under Sub-sections (1), (2), (3), (4), or (5), commits the same offence again, he/she shall be punished with double the penalty prescribed in the said sub-sections.

Section 20: Complaint and Limitation

- (1) The following persons or bodies may lodge a complaint at the concerned Labour Office in relation to an offence punishable under this Act:
 - (a) The employee who inspected the establishment under Section 15;
 - (b) The police of the concerned area;
 - (c) The concerned child or his/her father, mother, or guardian;
 - (d) The concerned Village Council or Municipality;
 - (e) The trade union at the establishment level; or
 - (f) A body or non-governmental organization established under prevailing law for the protection of child rights and welfare.
- (2) A complaint may be filed within one year from the date of commission of the offence punishable under this Act.

Section 21: Authority to Impose Penalty

- (1) The Labour Office shall have the authority to impose penalties on a person who violates this Act or the rules framed thereunder.
- (2) While imposing penalties under Sub-section (1), if imprisonment is to be awarded, the Labour Office shall file a case in the Labour Court and the penalty shall be executed upon issuance by such Court.

Section 22: Appeal

A person who is not satisfied with the penalty imposed by the Labour Office under Section 21 may file an appeal in the Labour Court within thirty-five days from the date of receipt of the order of such penalty.

Provided that in the case of imprisonment, an appeal shall lie to the High Court.

Part 6: Miscellaneous

Section 23: Child Labour Prevention Committee

- (1) The Government of Nepal shall constitute a Child Labour Prevention Committee to obtain advice and suggestions on necessary matters relating to the prevention of child labour, including arrangements for the health, safety, education, vocational training of children working in establishments, provision of suitable employment to children, discouraging the employment of children in work, and elimination of child labour.
- (2) The Committee constituted under Sub-section (1) shall have proportional representation of government and non-governmental institutions and experts working in the field of child labour.
- (3) The formation procedure, functions, duties, powers, and working procedures of the Child Labour Prevention Committee shall be as prescribed.

Section 24: Child Labour Prevention Fund

- (1) The Government of Nepal shall establish a fund named the Child Labour Prevention Fund for the arrangements of health, safety, education, vocational training of children working in establishments, provision of suitable employment to children, discouraging the employment of children in work, and elimination of child labour.
- (2) The following amounts shall be deposited in the Child Labour Prevention Fund:
 - (a) Amount received from the Government of Nepal;

(b) Amount received as donation, fee, grant, and assistance from national and international organizations and institutions; and

(c) Amount received from any other source.

(3) The amounts deposited in the Child Labour Prevention Fund and the operation of the Fund shall be as prescribed.

Section 25: Power to Issue Directives

(1) The Government of Nepal may issue necessary directives to managers, trade unions, child welfare homes, and institutions caring for children for the protection of child rights and welfare.

(2) It shall be the duty of all concerned to comply with the directives issued by the Government of Nepal under Sub-section (1).

Section 26: Amendment to Schedule

(1) The Government of Nepal may, by notification in the Nepal Gazette, add any other risky work or occupation to the Schedule.

(2) While adding any risky work or occupation to the Schedule under Sub-section (1), the Government of Nepal may obtain the advice of the Child Labour Prevention Committee, if deemed necessary.

(3) The amendment to the Schedule shall be deemed to have been made thirty days from the date of publication of the notification.

Section 27: Power to Frame Rules

The Government of Nepal may frame necessary rules for the implementation of the objectives of this Act.

Section 28: Repeal and Amendment

(1) The following amendments are made to the Labour Act, 2048:

(a) Clause (j) of Section 2 is deleted.

(b) The words "fourteen years" in Clause (i) of Section 2 are substituted by the words "sixteen years".

(c) Sub-section (1) of Section 5 is deleted.

(d) The following Sections 32A and 32B are added after Section 32:

"32A. Prohibition on Employing Adolescents Without Adequate Instruction or Vocational Training:

(1) No person shall employ an adolescent without adequate instruction or vocational training in the relevant field of work.

(2) The provisions relating to adequate instruction or vocational training to be given while employing adolescents under Sub-section (1) shall be as prescribed.

(3) A manager who employs an adolescent in contravention of Sub-section (1) shall be punished with imprisonment for a term not exceeding three months or a fine not exceeding ten thousand rupees, or both."

"32B. Dispute Relating to Age: (1) If a dispute arises regarding the age of any adolescent working in an establishment, the age recorded in the birth certificate shall be deemed to be the actual age of the adolescent.

(2) If no birth certificate of an adolescent is available, the age determined through medical examination by a physician appointed by the Labour Office shall be deemed to be the actual age."

(2) The following amendments are made to the Children Act, 2048:

- (a) Sections 17 and 18 are repealed.
- (b) Part 5 is repealed.
- (c) The words "17 or 18" in Sub-sections (1) and (6) of Section 53 are deleted.
- (d) Sub-section (10) of Section 53 is deleted.

Transitional Provisions:

(1) Words transformed by the Some Nepal Laws Amendment Act, 2063: "His Majesty's Government" is substituted by "Government of Nepal".

(2) Words transformed by the Administration of Justice Act, 2073: "Appellate Court" is substituted by "High Court".

Schedule (Related to Section 3(2))

Hazardous Occupations and Works

- (a) Tourism-related businesses including inns, residential hotels, motels, hotels, restaurants, bars, pubs, discos, go-karts, gliding, resorts, water rafting, horse riding, cable car operation, polo, hot air ballooning, paragliding, golf clubs, and businesses related thereto, including working in casinos and closed rooms;
- (b) Service-oriented businesses such as working in cinema halls, laboratories, driving vehicles, working in warehouses, cold storage, butcher shops, meat cutting, cleaning animal organs;
- (c) Public transport and construction businesses;
- (d) Spinning, carpet weaving, dyeing, cleaning chimneys, garment washing, dyeing, and printing, leather processing, cement production and packaging, match production, production and distribution of insecticides, beer, liquor and other beverages, explosives production, soap production, asbestos production, pulp and

paper production, slate production, pencil production, pesticide production, kerosene and turpentine oil production, waste collection, processing, and electroplating, photo processing, rubber, synthetic, plastic, glass production, and works related to mercury;

(e) Works related to production of electricity, air, energy, coal, natural gas or biogas from water resources, and transmission and distribution thereof;

(f) Works related to mining, processing, and distribution of mineral resources, natural oil or gas;

(g) Rickshaws or hand carts;

(h) Works such as diving work;

(i) Works to be done by climbing high altitude including mountaineering, rock climbing;

(j1) Works related to brick kilns and brick production;

(j2) Stone breaking, extracting stones from hills or rivers, stone and sand crushing, tree cutting, timber collection, loading and unloading timber, collecting forest products at risky heights, and works related to loading and unloading of minerals;

(j3) Works involving heavy metal use (such as lead, cadmium) and handicrafts especially involving production of metal idols, and works done at low temperatures;

(j4) Pharmaceutical production, mixing, heating, and disposal of dyes and chemicals, spraying chemical pesticides, and agricultural works of planting and harvesting crops within three days of spraying;

(j5) Works related to maintenance and cleaning of vehicles including automobiles and equipment running on engines;

(j6) Works involving direct combat, espionage, or assistance thereto;

(j7) Works of employing a child in domestic work from school in a manner that hinders education, without the approval of the father and mother, for the purpose of ancestral debt bondage;

(k) Works involving contact with chemical substances; and

(l) Any other risky work as prescribed by prevailing law.

Key Metadata

Law Name	Child Labour (Prohibition and Regulation) Act, 2056 (2000 AD)
Year	2056 BS (2000 AD)
Categories	Labour Rights, Child Protection, Prohibited Work
Important Topics Covered	Prohibition of child labour below 14 years; Hazardous occupations; Working hours limitation; Medical fitness certification; Inspection

	mechanism; Penalties for violations; Child Labour Prevention Fund; Child Labour Prevention Committee; Equal remuneration; Health and safety standards; Parental/guardian consent requirement; Age dispute resolution; Registration and reporting requirements
Related Laws	Labour Act, 2048; Children Act, 2048; Labour Act, 2074
Commencement Date	As notified by Government of Nepal in Nepal Gazette (came into force on 2061.8.1 per notification dated 2061.7.30)
Amending Acts	Republic Strengthening Act, 2066; Amendment Act, 2072; Amendment/Consolidation Act, 2074; Amendment Act, 2075
Purpose	To prohibit engagement of children in hazardous work and regulate conditions of employment for children above 14 in non-hazardous occupations